Temporary
3168

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE.

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other Purposes", approved October 6th, 1919 known as the "Trading with the enemy act" and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919 and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, certain real estate now being held and administered by him as such Alien Property Custodian and heretofore, upon requirement conveyed, transferred, assigned, and delivered to him as the property of Johann Krannichfeldt and Nicolas Schmitt, doing business under the name of the Star Electric Fuze Works, which said persons he did after investigation determine to be enemies within the purview of said Act as amended, which property is described as follows, to wit:

The surface of all that lot of land situate in the Township of Wilkes-Barre, County of Luzerne and State of Pennsylvania, bounded and described as follows, to wit: Real Estate

BEGINNING on line between the Dana and Metcalf tracts 925 feet southeast from Chase Street; thence along said line 47 degrees South 46 minutes East, 428 feet to a point on the northerly side of Shannon Street; thence along the line of the northerly side of Shannon Street, South 43 degrees 26 minutes West, 40 feet to a corner; thence 46 degrees 34 minutes East 143.7/100 feet more or less to a corner in line of the right of way of Central R. R. Co. of New Jersey; thence along the line of said right of way of the Central Railroad Company of New Jersey in a southwesterly direction 558 feet more or less to lands of the Lehigh & Wilkes-Barre; thence along the same North 47 degrees 46 minutes West, 391 feet more or less to a corner; thence North 42 degrees 14 minutes East, 569-28/100 feet to the place of beginning. Being the same premises conveyed to Nicholas Schmitt and John Krannichfeldt, by two deeds dated the first of March, 1904, and the sixteenth of January, 1913, recorded respectively in the office for recording deeds in Luzerne County, in Deed Book No. 418, page 389 and 487, page 419; together with all buildings and improvements thereon; also

All the surface of all that certain lot of land in Wilkes-Barre Township, Luzerne County, Pennsylvania, being lot No. 48 on plot of lots of Frank P Slattery and William Mayles as shown on allotment in Luzerne County in Map Book No. 1, page 356 and 357, bounded and described as follows, to wit:

BEGINNING at a corner on Pulaski Street 195 feet southeasterly from the intersection of said Street with Kearing Street; thence along Pulaski Street South 46 degrees 34 minutes East 40 feet to a corner in line of lot No. 49; thence along the line of lot No. 49 South 43 degrees 26 minutes West about 134-4/10 feet more or less to the line of the Dana Estate; thence along the line of the Dana Estate North 46 degrees 34 minutes West 40 feet more or less to a corner in line of lot No. 47; thence along the line of lot No. 47 North 43 degrees 26 minutes East about 134.4/10 feet more or less to the place of beginning. Being part of a large tract of land conveyed to Frank P. Slattery and William Mayles by H. F. Metcalf, et al. by Deed dated April 12, 1911, and to John Krannichfeldt and Nicholas Schmitt dated September 29, 1913, recorded October 14, 1913, Deed Book 496, Page 126; together with all buildings and improvements thereon.

My reasons for the foregoing determination, order, rule and regulation are:

(a) The said real estate is subject to a lease between the Star Electric Fuze Works and the Atlas Powder Company made under a license granted by the War Trade Board and with the consent of the Alien Property Custodian, which lease contains an option in favor of the Atlas Powder Company to purchase the property. The validity of said option may be a matter of some doubt, but its existence constitutes a cloud upon the title to the property by reason whereof this property can not be sold advantageously at public sale.

(b) An attempted sale at auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience which should be avoided.

WOODROW WILSON

THE WHITE HOUSE,
21 September, 1919.

[No. 3168.]